

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jonathan Hutchinson	Team: Team # 1	CCRB Case #: 201105993	☒ Force ☒ Abuse	☒ Discourt. ☐ O.L.	☐ U.S. ☐ Injury
Incident Date(s) Tuesday, 05/10/2011 6:00 PM	Location of Incident: 1.) F/O § 87(2)(b); 2.) En route to 77th PCT s/h; 3.) Inside 77th PCT s/h		18 Mo. SOL 11/10/2012		Precinct: 77
Date/Time CV Reported Wed, 05/11/2011 9:21 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/11/2011 9:21 AM		

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Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Fady Azmy	01308	947976	PBBN
3. POM Matthew Palmieri	08390	949442	PBBN
4. POM Christophe Sanchez	23298	948129	PBBN
5. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT John Sharkey	00000	918319	PBBN
2. DI Elvio Capocci	00000	899011	077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
3. POM Jesse Colon	05088	948008	PBBN
4. POF Chaleka Brown	18973	948699	PBBN
5. POM Ri Yu	07379	949820	PBBN
6. POM Barrington Clemmings	22501	929905	077 PCT
7. POM Salvatore Corulla	01691	948815	PBBN
8. POM Victor Cuevas	06288	948011	PBBN
9. POM Sacha Pierrelouis	27882	921681	077 PCT
10. SGT Daniel Lee	02818	935170	013 PCT
11. SGT Alton Walker	05592	918450	M E L D
12. SGT Georgina Gonzalez	05276	896880	077 PCT
13. POM Richard Kowalczyk	04519	947927	PBBN
14. POM Paul Aparo	21375	945137	077 PCT
15. POM Jason Marsman	17882	937032	077 PCT
16. POM Kevin Agro	08054	947964	PBBN
17. POM Dat Tang	07980	942596	077 PCT
18. POM Philip Green	00185	949059	PBBN
19. POM Mike Loporto	02104	948080	PBBN
20. POM Qassim Ahmed	07194	947965	PBBN
21. POM Roman Goris	14772	947042	077 PCT
22. POM Peter Behan	06134	947896	077 PCT

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Officer(s)	Allegation	Investigator Recommendation
K . Officers	Discourtesy: In front of § 87(2)(b) in Brooklyn, en route to the 77th Precinct stationhouse, and inside the 77th Precinct stationhouse, officers spoke obscenely and/or rudely to § 87(2)(b), § 87(2)(b)	K . Officer(s) Unidentified
L . An officer	Force: Inside the 77th Precinct stationhouse, an officer hit § 87(2)(b) § 87(2)(b) against a wall.	L . Officer(s) Unidentified

Case Summary

On May 11, 2011, § 87(2)(b) called the CCRB to file the following complaint on behalf of herself, her niece, § 87(2)(b) her friend, § 87(2)(b), § 87(2)(b)'s brother, § 87(2)(b) an acquaintance, § 87(2)(b) and another acquaintance, § 87(2)(b). On the same date, § 87(2)(b) and § 87(2)(b) a resident of § 87(2)(b) in Brooklyn, called the NYPD Internal Affairs Bureau to file a duplicate complaint. The case was assigned log number 11-21304 and was referred to the CCRB on May 18, 2011. Also on the same date, § 87(2)(b) called the CCRB to file a duplicate complaint. On July 6, 2011, § 87(2)(b), § 87(2)(b), their sister, § 87(2)(b) their father, § 87(2)(b) § 87(2)(b) and their mother, § 87(2)(b) sent a letter to the NYPD Internal Affairs Bureau to file another duplicate complaint. The case was assigned log number 11-31468 and was referred to the CCRB on July 11, 2011.

On May 10, 2011, at approximately 6:00 p.m., officers responded to the vicinity of § 87(2)(b) in Brooklyn, resulting in the following allegations.

- **Allegation A: Discourtesy – In front of § 87(2)(b) in Brooklyn, PO Fady Azmy spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)**
- **Allegation B: Discourtesy – In front of § 87(2)(b) in Brooklyn, PO Christopher Sanchez spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)**

§ 87(2)(g)

§ 87(2)(b); it is therefore recommended that **Allegations A and B** be unsubstantiated.

- **Allegation C: Abuse of Authority – In front of § 87(2)(b) in Brooklyn, officers threatened § 87(2)(b), § 87(2)(b), and individuals with the use of force.**
- **Allegation D: Force – In front of § 87(2)(b) in Brooklyn, officers used pepper spray against § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and individuals.**
- **Allegation E: Force – In front of § 87(2)(b) in Brooklyn, officers struck § 87(2)(b) with asps.**
- **Allegation F: Force – In front of § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)**
- **Allegation G: Force – In front of § 87(2)(b) in Brooklyn, PO Fady Azmy used physical force against § 87(2)(b)**
- **Allegation H: Force – In front of § 87(2)(b) in Brooklyn, PO Christopher Sanchez used physical force against § 87(2)(b)**
- **Allegation I: Force – In front of § 87(2)(b) in Brooklyn, PO Matthew Palmieri used pepper spray against individuals.**

§ 87(2)(g)

§ 87(2)(b); it is therefore recommended that **Allegations C, D, E, F, G, H and I** be exonerated.

- **Allegation J: Force – In front of § 87(2)(b) in Brooklyn, officers struck individuals with asps.**

§ 87(2)(g)

§ 87(2)(b); it is therefore recommended that Allegation J be closed as victims unidentified.

- **Allegation K: Discourtesy – In front of § 87(2)(b) in Brooklyn, en route to the 77th Precinct stationhouse, and inside the 77th Precinct stationhouse, officers spoke obscenely and/or rudely to § 87(2)(b), § 87(2)(b), and individuals.**
- **Allegation L: Force – Inside the 77th Precinct stationhouse, an officer hit § 87(2)(b) against a wall.**

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that Allegations K and L be closed as officers unidentified.

On July 1, 2011, the case, which was initially assigned to Inv. Matthew Wasserman of Team One, was reassigned to the undersigned investigator.

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) African-American female, § 87(2)(b), with black hair and brown eyes. At the time of the interview, § 87(2)(b) resided at § 87(2)(b) in Brooklyn and was unemployed. § 87(2)(b) was interviewed at the CCRB on May 23, 2011.

§ 87(2)(a) PBH §18(6)

CCRB Testimony:

§ 87(2)(b) was interviewed at the CCRB by Inv. Wasserman on May 23, 2011 (encl. 22a-22e).

§ 87(2)(g)

§ 87(2)(b) At about 4:45 p.m. on May 10, 2011, § 87(2)(b) was standing on the sidewalk in front of § 87(2)(b) with her friend, § 87(2)(b) and § 87(2)(b)'s friend, § 87(2)(b). § 87(2)(b)'s cousin, § 87(2)(b) walked up with a slice of pizza in his hand. § 87(2)(b) asked § 87(2)(b) for a piece of pizza, which he provided to her. § 87(2)(b) then gave a piece of her piece of pizza to § 87(2)(b) who threw the crust into the street.

Two uniformed officers on foot, identified by the investigation as PO Fady Azmy and PO Christopher Sanchez of Patrol Borough Brooklyn North, were across the street. § 87(2)(b) described PO Azmy as a Caucasian male officer standing approximately five feet, four to five feet, five inches tall, with a muscular build and closely shaved blond hair. § 87(2)(b) described PO Sanchez as a Hispanic male officer standing approximately six feet tall, wearing transitional

sunglasses. PO Azmy approached § 87(2)(b) and told her to “pick it the fuck up,” referring to the crust, and § 87(2)(b) refused.

PO Azmy asked § 87(2)(b) to provide identification and she stated that she did not have any. PO Sanchez approached from across the street. At this point, § 87(2)(b)'s brother, § 87(2)(b) walked over and stood in between § 87(2)(b) and the officers with his arms outstretched, but not touching the officers. § 87(2)(b) asked, “Excuse me officer, what’s going on?” § 87(2)(b)'s younger sister, § 87(2)(b) approached, and § 87(2)(b) told her to go get her mother, § 87(2)(b) which she did.

PO Sanchez took his asp out, extended it and started swinging it around, repeatedly telling everyone to “Back up!” At this point, at least twenty-five to thirty uniformed officers arrived on scene. Some arrived on foot, some in a marked van, and some may have arrived in a patrol car. There was only one female officer among the responding officers and the officers were all white, Hispanic, or Asian. § 87(2)(b) described the female officer, identified by the investigation as PO Chaleka Brown of the Patrol Borough Brooklyn North impact response team, as a Hispanic female officer, standing approximately five feet tall, with a stocky build and who § 87(2)(b) identified as “Brown.”

When § 87(2)(b) turned back around after speaking with § 87(2)(b) officers were beating on § 87(2)(b) who was on the ground, inside a short fence surrounding a tree on the sidewalk § 87(2)(b) initially stated that PO Azmy and PO Sanchez grabbed § 87(2)(b)'s arms and shoulders and brought him to the ground; later in the interview, she stated that, when she turned around, § 87(2)(b) was already on the ground). At least six officers, including PO Brown, punched § 87(2)(b) at least six times each and PO Sanchez hit § 87(2)(b) with his asp three times. An unidentified officer also emptied an entire can of pepper spray into § 87(2)(b)'s eyes. PO Sanchez punched and pepper-sprayed § 87(2)(b) who was screaming and trying to shield his face while this was happening.

§ 87(2)(b) was standing three feet away from § 87(2)(b) screaming, “Why are you doing this?” § 87(2)(b) came out and asked, “Why are you doing this?” § 87(2)(b) walked towards an officer she knew from her work on the community clergy council, who § 87(2)(b) identified as “Lt. Sharkey.” § 87(2)(b)'s father, § 87(2)(b) § 87(2)(b) then approached the officers and asked, “What’s going on?” Everyone started screaming after officers started striking § 87(2)(b)

PO4, a 5’6” or 5’7” white male with a medium build, pepper-sprayed § 87(2)(b) § 87(2)(b) PO5, a 5’9” white muscular male officer, then pepper-sprayed § 87(2)(b) § 87(2)(b) shielded her mother’s eyes so that § 87(2)(b) was not badly affected by the pepper spray. § 87(2)(b) asked again, “Why are you doing this?” PO5 told her to “shut up” and pepper-sprayed her in the mouth. PO5 then pepper-sprayed a man in a wheelchair, identified as § 87(2)(b) Another officer ran up and pepper-sprayed § 87(2)(b) superintendent, identified as § 87(2)(b) then slammed him to the ground, but § 87(2)(b) did not see this. PO5 stood in the street, discharging an entire canister of pepper-spray over a civilian van parked in front of § 87(2)(b) spraying toward the sidewalk in a sweeping motion. PO5 was covering his eyes with his forearm and spraying indiscriminately at the entire crowd. § 87(2)(b) also noticed that officers appeared to have been struck by pepper spray.

The officers placed § 87(2)(b), § 87(2)(b), and § 87(2)(b) § 87(2)(b) in handcuffs. § 87(2)(b) stated twice, “What y’all doing is wrong.” Officers then grabbed § 87(2)(b) from behind by his collar and handcuffed him. § 87(2)(b) stated that there were numerous bystanders to this incident, including various people who live on the block and people from the restaurant across the street, but could not name any additional witnesses. She stated that no individuals ever approached or struck officers or did anything besides commenting on what was happening.

Lt. Sharkey shouted, “Check the roofs,” and approximately sixteen police officers ran to § 87(2)(b) where § 87(2)(b) daughter, § 87(2)(b) § 87(2)(b) and her niece, § 87(2)(b) (b) § 87(2)(b) were sitting on the stoop. § 87(2)(b) daughter told her that the officers swung their batons at her, pushed her and told her to “move,” but § 87(2)(b) did not see this. § 87(2)(b) also told § 87(2)(b) that an officer elbowed her in the chest.

After she was pepper-sprayed, § 87(2)(b) attempted to go to her daughter, who was screaming. PO6, a 5’7” or 5’8” muscular Hispanic male officer, blocked her path and made her back up by hitting her throat five times with the back of his forearm. This did not interfere with § 87(2)(b) breathing and she stated that she did not feel anything because she was hysterical § 87(2)(b) stated that she was screaming at this time, although she also stated that being pepper-sprayed in the mouth prevented her from speaking for a couple of days). Following the incident, § 87(2)(b) went to the § 87(2)(b) clinic for medical treatment on § 87(2)(b), as the pain from being pepper-sprayed had not abated. § 87(2)(b) stated that she could not speak for a couple of days, had pain in her throat, had diarrhea, and lost twenty-six pounds as a result of being pepper-sprayed.

Notice of Claim Statement:

On § 87(2)(b), § 87(2)(b) filed a Notice of Claim with the New York City Comptroller’s Office, during which time she provided a statement § 87(2)(g) (encl. 48a-48y).

Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black female with brown hair and brown eyes § 87(2)(b). At the time of the interview, § 87(2)(b) worked § 87(2)(b) and resided at § 87(2)(b) in Brooklyn.

§ 87(2)(a) PBH §18(6)

CCRB Testimony:

§ 87(2)(b) was interviewed at the CCRB by Inv. Wasserman on May 24, 2011 (encl. 24a-24f). § 87(2)(g) At about 6:15 p.m. on May 10, 2011, § 87(2)(b) threw a piece of pizza crust into the middle of the street. An officer, identified by the investigation as PO Azmy, approached and said, “Why did you throw the fucking bread in the street?” § 87(2)(b) described PO Azmy as a somewhat stocky, 5’3” white

- § 87(2)(a) PBH §18(6)

CCRB Testimony:

§ 87(2)(b) was interviewed at the CCRB by Inv. Wasserman on June 7, 2011 (encl. 38a-38e). § 87(2)(g)

At about 6:00 p.m. on May 10, 2011, § 87(2)(b) was sitting and talking by a barber shop across the street from his residence § 87(2)(b) in Brooklyn. He had not consumed any alcohol or drugs that evening. He observed two uniformed male officers, identified by the investigation as PO Sanchez and PO Azmy, grabbing his sister, § 87(2)(b) by the arm and crossed the street to see what was happening. PO Sanchez was a slim 6'2" Hispanic male in his late-20's, with dark hair, who he identified as "Sanchez." PO Azmy was a somewhat stocky, 5'8" or 5'9" Asian male in his mid-30's, with dark hair, who he identified as "Tang." § 87(2)(b) obtained the names of "Sanchez" and "Tang" from their nameplates during a later incident when they arrested a female for sitting on her stoop).

§ 87(2)(b) approached the officers and asked why they were grabbing his sister. PO Azmy told him, "Fuck you. Back up." § 87(2)(b) expressed that the officers were not following proper procedure and he had a right to know what was happening with his sister. PO Sanchez told § 87(2)(b) to "back the fuck up." The officers told § 87(2)(b) to put his arms behind back, but he did not do so and instead told the officers that he had rights. PO Sanchez took out his baton, swung it in the air and told onlookers to "back up."

When PO Sanchez reached for his baton, § 87(2)(b) § 87(2)(b) placed his body in front of his sister to block the officers from reaching for her, but he never touched officers. He was standing on the sidewalk about one to two feet away from the officers with his arms up in the air, parallel to his head. PO Sanchez was in front of § 87(2)(b) and to his left, while PO Azmy was in front of § 87(2)(b) and to his right.

An unknown officer pepper-sprayed § 87(2)(b) § 87(2)(b) from the side as he was facing PO Sanchez, causing § 87(2)(b) to become blind. Additional officers had not yet arrived on scene. After § 87(2)(b) was pepper-sprayed, he could hear additional officers arriving on scene. Officers grabbed his left arm, placed it behind his back, and pushed him by the arm so that he fell to the ground by a metal fence around a tree. Officers also punched § 87(2)(b) in the face an unknown number of times as he was falling to the ground and once he was on the ground. As he was falling, officers also hit § 87(2)(b) in the left side of his ribs with their batons, two or three times. Once he was on the ground, § 87(2)(b) lay on his side, with his left side against the ground and his left cheek against the dirt around the tree. Officers were telling § 87(2)(b) to put his hands behind his back, but he was unable to do so because his face was burning and he was being punched. § 87(2)(b) was "squirming," moving his upper body around, due to the pain.

Officers continued to pepper-spray § 87(2)(b) as he lay on the ground. A 5'6" or 5'7" bald-headed uniformed Asian male in his mid-30's, who § 87(2)(b) identified as "Primeri," also placed his knee against the right side of § 87(2)(b)'s neck, pressing his face into the dirt of the tree box. (Despite being blinded by pepper spray, § 87(2)(b) had a small amount of sight in his left eye, which allowed him to see this officer. He obtained his name

during the above-mentioned later incident). In his telephone statement, § 87(2)(b) was unable to identify any of the subject officers by name. Officers also punched § 87(2)(b) § 87(2)(b) all over his torso once he was on the ground. § 87(2)(b) lost consciousness for up to five seconds due to his inability to breathe because of the pepper spray, his face being in the dirt and the knee pressing against his neck.

Although officers placed both of § 87(2)(b)'s hands behind his back on the ground, he was not handcuffed on the ground. He was instead picked up from the ground and handcuffed in an upright position. He was placed in a marked police van and transported to the 77th Precinct stationhouse. § 87(2)(b) heard his father's voice in the van, saying that what was happening was "messed up," but could not see him as he was still blind.

Once the van arrived at the 77th Precinct stationhouse, officers, who § 87(2)(b) was unable to identify or describe, since he was unable to see, dragged him into the stationhouse by his handcuffs as he tried to walk backwards. An unidentified officer grabbed § 87(2)(b) § 87(2)(b) by one of his arms and pushed him against a wall in the stationhouse, causing him to fall to the ground. § 87(2)(b) § 87(2)(b) did not know where the wall was in the stationhouse or describe the officers with whom he was interacting, as he was still blind. He was placed into a holding cell, where he remained in handcuffs for about three hours.

At some point when § 87(2)(b) was in the cells, he thought he heard someone approach, so he stated that he might need medical attention. The person who was near the door told § 87(2)(b) § 87(2)(b) to "hold on," and then left. § 87(2)(b) could not see this individual as he was still blind. A couple of hours later, EMS came around and asked if anyone needed water for their eyes. § 87(2)(b) declined this, as he was doing fine, and there was water available in the cell. § 87(2)(b) heard his father accept this attention from EMS, but did not see his father or any other individuals get pepper-sprayed. When § 87(2)(b) was brought to Brooklyn Central Booking, he did not mention any injuries to EMS, as he did not want to be escorted to the hospital by the police. After § 87(2)(b) was released from Central Booking, he obtained medical treatment at § 87(2)(b).

Notice of Claim Statement:

On § 87(2)(b), § 87(2)(b) filed a Notice of Claim with the New York City Comptroller's Office, during which time he provided a statement § 87(2)(g) (encl. 48a-48y).

Victim: § 87(2)(b)

§ 87(2)(b) is an § 87(2)(b) African-American female with black hair and brown eyes § 87(2)(b). At the time of the interview, § 87(2)(b) § 87(2)(b) and resided at § 87(2)(b) in Brooklyn.

§ 87(2)(a) PBH §18(6)

CCRB Testimony:

§ 87(2)(b) was interviewed at the CCRB by Inv. Wasserman on May 23, 2011 (encl. 39a-39d), § 87(2)(g)

§ 87(2)(b). At approximately 4:45 p.m. on May 10, 2011, § 87(2)(b) was sitting on the stoop of her residence, located at § 87(2)(b) in Brooklyn, with § 87(2)(b). § 87(2)(b) heard an officer, identified by the investigation as PO Azmy, tell § 87(2)(b) to, “Pick the fucking bread up,” and she refused. PO1 asked § 87(2)(b) for identification and § 87(2)(b) stated that she did not have identification. § 87(2)(b) told someone to get her mother to get her identification. § 87(2)(b) observed numerous officers pepper spray § 87(2)(b) punch him in the face, and strike him with asps.

Unidentified officers pepper-sprayed § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b). After an officer told other officers to “check the building,” referring to § 87(2)(b) about twenty-five officers ran up the stairs toward § 87(2)(b). The fourth officer to come up the steps told § 87(2)(b) “Move, move, move out of the way,” and swung an asp toward her face, without hitting her. In her Notice of Claim statement, however, § 87(2)(b) alleged that an officer struck her in the stomach and chest with the asp. § 87(2)(b) described the officer as a skinny, 6’2” Hispanic male in his 30’s, wearing glasses and a uniform. The officer grabbed § 87(2)(b) by the collar of her hooded sweatshirt and dragged her up the steps. The same officer also elbowed § 87(2)(b) in the chest without saying anything. As a result of this action, § 87(2)(b) had difficulty breathing.

Notice of Claim Statement:

On § 87(2)(b) § 87(2)(b) filed a Notice of Claim with the New York City Comptroller’s Office, during which time she provided a statement § 87(2)(g) (encl. 48a-48y).

Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black female with brown hair and brown eyes § 87(2)(b). At the time of the interview, § 87(2)(b) § 87(2)(b) and resided at § 87(2)(b) in Brooklyn.

CCRB Testimony:

Inv. Kim interviewed § 87(2)(b) at the CCRB on May 26, 2011 (encl. 27a-27f), § 87(2)(g). At about 6:00 p.m. on May 10, 2011, § 87(2)(b) ran outside from her residence because she heard § 87(2)(b) speaking loudly outside, saying “Hold on.”

After observing officers arrest § 87(2)(b) and assault § 87(2)(b) while arresting him, § 87(2)(b) was trying to restrain § 87(2)(b) as she kept attempting to run toward the officers. At one point, a slim 5’2” Hispanic female in a uniform who was standing in the street observing what was happening grabbed § 87(2)(b) by the hand and told her that she could not approach the officers. § 87(2)(b) § 87(2)(b) ran in the street along § 87(2)(b) toward the scene, saying, “What’s going on? That’s my son.” A uniformed male officer, who was standing directly behind § 87(2)(b) and who § 87(2)(b) was unable to identify or describe, pepper-sprayed § 87(2)(b) § 87(2)(b) then turned around and pepper-sprayed § 87(2)(b) and § 87(2)(b) from about two feet away. The officer reached over the

top of a parked jeep or van and pepper-sprayed § 87(2)(b) who was trying to get up from his wheelchair and saying, “What’s happening?” The officer then walked around the jeep and pepper-sprayed § 87(2)(b) who was standing on the sidewalk, in her mouth.

When § 87(2)(b) approached her sister, who was sitting inside a police van, a skinny white male officer of an average height who was standing next to the van handed her § 87(2)(b) s phone. Another officer took out his baton with his right hand, approached and told § 87(2)(b) “What the fuck are you doing? Get the fuck away from the van. Do you think it’s a fucking game?” § 87(2)(b) tried to explain to the officer, a 5’6” or shorter Hispanic male with a stocky build, who was wearing a hat, that she was getting her sister’s phone and the officer pushed her in the chest with his left hand.

Notice of Claim Statement:

On § 87(2)(b) § 87(2)(b) filed a Notice of Claim with the New York City Comptroller’s Office, during which time she provided a statement § 87(2)(g) (encl. 48a-48y).

Victim: § 87(2)(b)

§ 87(2)(b) § 87(2)(b) is a § 87(2)(b) black female with brown hair and brown eyes. She is § 87(2)(b) and declined to provide her weight. At the time of the interview, § 87(2)(b) § 87(2)(b) was self-employed § 87(2)(b) and resided at § 87(2)(b) in Brooklyn.

CCRB Testimony:

§ 87(2)(b) § 87(2)(b) was interviewed by Inv. Wasserman at the CCRB on June 3, 2011 (encl. 29a-29f). § 87(2)(g)

At about 6:05 p.m. on May 10, 2011, § 87(2)(b) § 87(2)(b) went to a real estate office in her neighborhood, § 87(2)(b), to fax some papers. At about 6:18 p.m., § 87(2)(b) § 87(2)(b) and an employee of the real estate office, identified by the investigation as § 87(2)(b) left the store and walked toward § 87(2)(b) s residence at § 87(2)(b). § 87(2)(b) § 87(2)(b) noticed that a crowd had gathered in front of her building. § 87(2)(b) § 87(2)(b) saw ten to twelve white male uniformed officers punching, kicking, and hitting her son, § 87(2)(b) with asps numerous times. § 87(2)(b) held § 87(2)(b) § 87(2)(b) back so that she never got closer than five feet to the officers who were hitting her son.

§ 87(2)(b) § 87(2)(b) came out of § 87(2)(b) and walked into the street in front of § 87(2)(b) toward the police car containing § 87(2)(b) § 87(2)(b) stated, “What is going on? This is my son.” Without further provocation, an officer pepper-sprayed § 87(2)(b) § 87(2)(b) in the eyes. The officer was a slim 6’ or 6’1” white male in uniform in his 20’s without glasses or tattoos. After the officer pepper-sprayed § 87(2)(b) § 87(2)(b) § 87(2)(b) asked “What’s going on?” The officer immediately proceeded to pepper-spray § 87(2)(b) § 87(2)(b) who was standing directly behind her husband, and then § 87(2)(b) and § 87(2)(b). The officer discharged his canister of pepper spray into the nearby crowd, which included officers, moving the canister from side to side. § 87(2)(b) § 87(2)(b) did not seek or receive medical treatment as a result of this incident.

Notice of Claim Statement:

On § 87(2)(b) § 87(2)(b) § 87(2)(b) filed a Notice of Claim with the New York City Comptroller's Office, during which time she provided a statement § 87(2)(g) (encl. 30a-30b).

Victim: § 87(2)(b) § 87(2)(b) is a § 87(2)(b) black male with black hair and brown eyes § 87(2)(b). At the time of the interview, § 87(2)(b) § 87(2)(b) § 87(2)(b) resided at § 87(2)(b) in Brooklyn.

§ 87(2)(a) PBH §18(6)

CCRB Testimony:
Inv. Pearce interviewed § 87(2)(b) § 87(2)(b) at the CCRB on June 3, 2011 (encl. 31a-31d) § 87(2)(b). At about 6:00 p.m. on May 10, 2011, § 87(2)(b) § 87(2)(b) heard the door bell ringing and a woman named § 87(2)(b) identified by the investigation as § 87(2)(b) yelling for him to come outside. When § 87(2)(b) § 87(2)(b) went outside, he saw helicopters and at least thirty uniformed police officers standing both in the street and on the sidewalk on the same side of the street as § 87(2)(b) § 87(2)(b). § 87(2)(b) § 87(2)(b)'s son, § 87(2)(b) was in handcuffs and lying on his stomach in the street.

More than ten officers were interacting with § 87(2)(b) holding his feet and the back of his collar, dragging him along the ground toward a marked van. § 87(2)(b) § 87(2)(b) did not see any other force used against his son and could not describe the officers who were dealing with him, except that one of them was "Chinese." § 87(2)(b) § 87(2)(b) noticed his younger daughter, § 87(2)(b) holding back his wife, § 87(2)(b) § 87(2)(b). They were standing between cars and the street. § 87(2)(b) § 87(2)(b) was asking what the officers were doing. § 87(2)(b) § 87(2)(b) walked into the street and said, "Wait a minute. This is my son. What's going on?" An unidentified officer immediately pepper-sprayed § 87(2)(b) § 87(2)(b) in the face. § 87(2)(b) § 87(2)(b) described the officer as a uniformed white or Hispanic male who was 5'10" or 5'11" tall and at most 30-years-old. The officer placed § 87(2)(b) § 87(2)(b) against a marked van and another officer handcuffed him. The white or Hispanic male officer continued to pepper-spray § 87(2)(b) § 87(2)(b) even after he had been handcuffed. The officer pepper-sprayed § 87(2)(b) § 87(2)(b) for over five minutes.

§ 87(2)(b) § 87(2)(b) was placed in a marked van with his son. § 87(2)(b) § 87(2)(b) and § 87(2)(b) were transported together to the 77th Precinct stationhouse. § 87(2)(b) § 87(2)(b) could not describe the officers who drove the van, but identified one officer, who he described as a 5'5" or 5'6" Asian male officer in his 20's with a medium build, as the officer who dragged his son out of the van. At the stationhouse, EMS treated § 87(2)(b) § 87(2)(b)'s eyes for the effects of pepper spray. Following his release from Central Booking, § 87(2)(b) § 87(2)(b) went to a § 87(2)(b) § 87(2)(b) on § 87(2)(b) in Downtown Brooklyn on § 87(2)(b), for medical treatment of his eyes, and received eye drops.

Notice of Claim Statement:

On § 87(2)(b), § 87(2)(b) § 87(2)(b) filed a Notice of Claim with the New York City Comptroller's Office, during which time he provided a statement § 87(2)(g) (encl. 32a-32b).

Victim: § 87(2)(b) § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black male with black hair and brown eyes § 87(2)(b). He is also known as § 87(2)(b). At the time of the interview, § 87(2)(b) was unemployed and resided at § 87(2)(b) in Brooklyn.

CCRB Testimony:

§ 87(2)(b) was interviewed by Inv. Wasserman at § 87(2)(b) in Brooklyn on June 6, 2011 (encl. 33a-33d) § 87(2)(g). At about 5:40 p.m. on May 10, 2011, § 87(2)(b) gave § 87(2)(b) and § 87(2)(b) a slice of pizza, which they were sharing, and then went across § 87(2)(b) to a deli. He had "a couple" of alcoholic beverages at a friend's house earlier in the day, but was not drunk. When § 87(2)(b) started observing the interaction between § 87(2)(b) and officers, he saw two officers, identified by the investigation as PO Sanchez and PO Azmy, patting her down.

§ 87(2)(b) approached and stated that the male officers were not supposed to be frisking his sister. § 87(2)(b) noted that there was a female officer in the area who was available to conduct the frisk, who § 87(2)(b) could only describe as a white female uniformed officer with blond hair. As § 87(2)(b) was interacting with the officers, § 87(2)(b) approached the commotion, so that he was standing on the sidewalk by § 87(2)(b) about eight to ten feet away from § 87(2)(b).

Numerous uniformed officers arrived on scene. Three to four officers pushed § 87(2)(b) backwards toward a box around a tree in between § 87(2)(b) and § 87(2)(b). Numerous officers, who § 87(2)(b) could not describe, pepper-sprayed § 87(2)(b) § 87(2)(b), whose entire face was covered with yellow or green foam as a result. An officer, who § 87(2)(b) described as a white or Hispanic male officer, told § 87(2)(b) to "back up," and § 87(2)(b) expressed that he did not need to back up, as he was on the sidewalk and standing at least fifteen feet from § 87(2)(b).

A 5'8" or 5'9" white or Hispanic male officer with a medium build in uniform pepper-sprayed § 87(2)(b). After he was pepper-sprayed, two officers handcuffed § 87(2)(b). § 87(2)(b) was placed in a marked van with § 87(2)(b) and was transported to the 77th Precinct stationhouse. § 87(2)(b) did not seek or receive medical treatment as a result of this incident.

Notice of Claim Statement:

On § 87(2)(b), § 87(2)(b) filed a Notice of Claim with the New York City Comptroller's Office, during which time he provided a statement § 87(2)(g) (encl. 34a-34b).

Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black male with brown hair and brown eyes § 87(2)(b). § 87(2)(b). At the time of the interview, § 87(2)(b) resided at § 87(2)(b) in Brooklyn and is not employed.

§ 87(2)(a) PBH §18(6)

CCRB Testimony:

§ 87(2)(b) was interviewed by Inv. Wasserman in the living room of § 87(2)(b) § 87(2)(b) in Brooklyn on June 6, 2011 (encl. 35a-35d). § 87(2)(g)

At about 6:00 p.m. on May 10, 2011, § 87(2)(b) was sitting in his walker outside of § 87(2)(b) in Brooklyn, talking to the building superintendent, identified by the investigation as § 87(2)(b). § 87(2)(b) saw a male police officer, identified by the investigation as PO Azmy, tell § 87(2)(b) to, “Pick it up.” § 87(2)(b) refused, saying that it was just a piece of bread and that the birds would eat it. PO Azmy told her again to “Pick it up.” § 87(2)(b) stated that PO Azmy used these exact words. § 87(2)(b) described PO Azmy as an approximately 5’7” tall white male officer in uniform.

§ 87(2)(b) observed officers punch § 87(2)(b) in the head area and ribs an unknown number of times. As the officers were moving § 87(2)(b) § 87(2)(b) toward a marked vehicle, § 87(2)(b) yelled out that the officers did not have to do what they were doing. An officer saw § 87(2)(b) yelling and told another officer to arrest § 87(2)(b). Prior to this, § 87(2)(b) had pulled both § 87(2)(b) and § 87(2)(b) away from the crowd, grabbing them by the back of their shirts. § 87(2)(b) and § 87(2)(b) had walked away from § 87(2)(b) and rejoined the crowd.

§ 87(2)(b) § 87(2)(b) came out of § 87(2)(b) and approached what was happening, as her children were being placed in police vehicle. § 87(2)(b) § 87(2)(b) stepped into the street, not the sidewalk, and asked, “What’s going on?” § 87(2)(b) § 87(2)(b)s younger daughter, identified as § 87(2)(b) was holding her mother back and telling her mother what was happening and to calm down. An officer, who § 87(2)(b) thought may have been the officer who accompanied PO Azmy during the initial interaction and who was identified by the investigation as PO Sanchez, pepper-sprayed § 87(2)(b). § 87(2)(b) commented, “That’s the kid’s mother. What are you doing?” The same officer turned toward § 87(2)(b) reached over a car and sprayed § 87(2)(b) in the face at a downward angle, catching him in the eyes and mouth as he was speaking. At some point during this incident, officers ran to § 87(2)(b) and kicked the door open and ran inside the building for no reason that § 87(2)(b) could discern. § 87(2)(b) obtained medical treatment at § 87(2)(b) in Brooklyn following the incident.

Notice of Claim Statement:

On § 87(2)(b) § 87(2)(b) filed a Notice of Claim with the New York City Comptroller’s Office, during which time he provided a statement § 87(2)(g) (encl. 36a-36b).

Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black male with black hair and brown eyes. At the time of the interview, § 87(2)(b) resided at § 87(2)(b) in Brooklyn.

CCRB Testimony:

He was interviewed by Inv. Wasserman on the stoop of § 87(2)(b) in Brooklyn (encl. 41a-41e) § 87(2)(g). At about 6:00 p.m. on May 10, 2011, § 87(2)(b) was observing an incident involving § 87(2)(b), § 87(2)(b) and two officers, identified by the investigation as PO Azmy and PO Sanchez. § 87(2)(b) observed a patrol car arrive with three officers, two males and a dark-skinned female. The male officers held § 87(2)(b) one on each side, while the female officer choked § 87(2)(b) from behind.

As § 87(2)(b) lay on the ground in the tree box in handcuffs, about twenty officers punched him, kicked him and hit him with batons. Officers pushed cameras out of bystanders' hands by hitting them with batons, and pepper-sprayed members of the crowd when they took out their cameras. § 87(2)(b) was unable to identify or describe any of the individuals who were struck with batons and pepper-sprayed in the crowd. PO Sanchez punched § 87(2)(b) § 87(2)(b) in the face at least fifteen times while § 87(2)(b) was on the ground. While PO Sanchez was punching § 87(2)(b), § 87(2)(b) asked why he was doing this and stated that § 87(2)(b) was already handcuffed. PO Sanchez got up, approached § 87(2)(b) stated that he was going to hit § 87(2)(b) with his baton, and told § 87(2)(b) to, "Get the fuck out of here." § 87(2)(b) observed a "chubby" white male officer, who § 87(2)(b) could not further describe, pepper-spraying individuals in the crowd.

Witness: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black female with brown hair and brown eyes § 87(2)(b). At the time of the interview, § 87(2)(b) § 87(2)(b) resided at § 87(2)(b) § 87(2)(b) in Brooklyn.

CCRB Testimony:

§ 87(2)(b) was interviewed by Inv. Wasserman at her residence on June 6, 2011(encl. 40a-40c). Her grandmother, § 87(2)(b) § 87(2)(b) and her grandmother's boyfriend, § 87(2)(b) were present for the interview. § 87(2)(g). At about 6:00 p.m. on May 10, 2011, § 87(2)(b) was on the fire escape of § 87(2)(b) § 87(2)(b) in Brooklyn, which looks down on § 87(2)(b) and from which she witnessed the incident.

Witness: § 87(2)(b)

§ 87(2)(b) is a black female, § 87(2)(b), in her mid-§ 87(2)(b) § 87(2)(b) refused to provide her address or occupation to the investigation.

CCRB Testimony:

Inv. Kim interviewed § 87(2)(b) on June 6, 2011, in front of § 87(2)(b) in Brooklyn (encl. 44a) § 87(2)(g). § 87(2)(b) declined to provide a recorded statement and was unable to provide a verified statement as she

did not have any identification on her person. On May 10, 2011, two officers, identified by the investigation as PO Sanchez (identified by § 87(2)(b) as “Sanchez”) and PO Azmy, approached § 87(2)(b) after she had tossed a piece of bread into § 87(2)(b). PO Azmy gave multiple commands to § 87(2)(b) instructing her to pick up the bread. § 87(2)(b) refused and the officer grabbed § 87(2)(b) by her wrist, using both hands. § 87(2)(b) intervened by placing himself between § 87(2)(b) and the officers. PO Sanchez removed his baton and struck § 87(2)(b) with it. PO Sanchez also punched § 87(2)(b) in the face while he was handcuffed. § 87(2)(b) was pepper sprayed, as were an § 87(2)(b) girl, another man, and § 87(2)(b). Officers entered § 87(2)(b) where they ran past a female named “§ 87(2)(b) identified by the investigation as § 87(2)(b). § 87(2)(b) described another officer, who she described as a thirty-five-year-old Hispanic female sergeant, standing approximately five feet, four inches tall, with a medium build and a dark complexion, who she identified as “Gonzalez,” and who was identified by the investigation as Sgt. Gonzalez, as being present on the scene.

Witness: § 87(2)(b)

§ 87(2)(b) is a female who, at the time of the interview, resided at § 87(2)(b) in Brooklyn.

CCRB Testimony:

On July 14, 2011, § 87(2)(b) provided the following telephone statement (encl. 45a) § 87(2)(b). On May 10, 2011, § 87(2)(b) observed an officer, who she was unable to describe, strike § 87(2)(b) § 87(2)(b) once in the head with an asp. § 87(2)(b) § 87(2)(b) reacted by grabbing his head where he had been struck.

Witness: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) African-American female who, at the time of the interview, resided at § 87(2)(b) in Brooklyn.

CCRB Testimony:

§ 87(2)(b) provided a telephone statement to the CCRB on June 24, 2011 (encl. 43a). § 87(2)(b). At about 6:00 p.m. on May 10, 2011, § 87(2)(b) was standing on the steps of § 87(2)(b) when she saw two uniformed officers, identified by the investigation as PO Azmy and PO Sanchez, come over to arrest § 87(2)(b). PO Azmy was a 5'5" or 5'6" tall Asian male in his 20s with a medium build. PO Sanchez was a 5'5" or 5'6" tall Hispanic male in his 20s with a slim build. There was also a female officer who was observing the incident.

§ 87(2)(b) came over to ask what the officers were doing. He had his hands at his side. PO Azmy told § 87(2)(b) to, “Get the fuck back.” The officers radioed for backup. Officers on foot responded to the scene and a crowd started to form. The officers told onlookers to “back the fuck up” and were swinging their batons, pushing the crowd back, and pepper-spraying “everyone.” A little girl was among the individuals who were pepper-sprayed.

Witness: § 87(2)(b)

§ 87(2)(b) is a male who, at the time of the interview, resided at § 87(2)(b) § 87(2)(b) in Brooklyn.

CCRB Testimony:

On July 29, 2011, § 87(2)(b) provided the following telephone statement (encl. 46a) § 87(2)(b). On May 10, 2011, § 87(2)(b) was standing on his stoop in front of § 87(2)(b) while witnessing the incident. When § 87(2)(b)'s father, § 87(2)(b), § 87(2)(b) exited one of the buildings and said, "That's my son," an unidentified officer punched him in the face before pepper-spraying him.

Witness: § 87(2)(b)

§ 87(2)(b) is a female who, at the time of the interview, resided at § 87(2)(b) in Brooklyn.

CCRB Testimony:

On May 23, 2011, § 87(2)(b) provided the following telephone statement (encl. 42a). § 87(2)(b). On the date of the incident, § 87(2)(b) saw "a little girl" get hit in the chest with a baton.

Attempts to Contact Civilians

§ 87(2)(b) identified § 87(2)(b) the superintendent of her building, and § 87(2)(b) the daughter of her friend, § 87(2)(b) § 87(2)(b) § 87(2)(b) as victims in the incident. The first please call letter was mailed to § 87(2)(b) on May 16, 2011. A search of the Lexis Nexis directory revealed three possible telephone numbers for § 87(2)(b) two of which were later determined to be disconnected. Five calls placed to the active telephone number listed for § 87(2)(b) in the Lexis Nexis directory between May 16, 2011 and May 31, 2011 failed, as the line was busy on each occasion. The final please call letter was mailed to § 87(2)(b) on May 23, 2011. Searches of the 411 directory, 411 reverse telephone number directory, COLE directory, Office of Court Administration database, and CCRB database did not yield any additional contact information for § 87(2)(b). To date, no letters mailed to § 87(2)(b) have been returned to the CCRB by the US Postal Service. A search of the Department of Corrections inmate database confirmed that § 87(2)(b) is not currently incarcerated in the City of New York.

On May 25, 2011, § 87(2)(b) was contacted on her home telephone number, at which point she confirmed her contact information, provided her consent for § 87(2)(b) to be interviewed, and scheduled an interview for June 3, 2011. On June 3, 2011, § 87(2)(b) and § 87(2)(b) missed their first scheduled interview appointment, and, on June 6, 2011, a missed appointment letter was mailed to their residence. On June 6, 2011, § 87(2)(b) scheduled another interview appointment for § 87(2)(b) for June 14, 2011. On June 14, 2011, § 87(2)(b) and § 87(2)(b) missed their second scheduled interview appointment. To date, no letters mailed to § 87(2)(b) have been returned to the CCRB by the US Postal Service. A search of the Department of Corrections inmate database confirmed that § 87(2)(b) is not currently incarcerated in the City of New York.

§ 87(2)(b) identified § 87(2)(b) her aunt, and § 87(2)(b) her cousin, as witnesses to the incident. § 87(2)(b) identified § 87(2)(b) her neighbor, § 87(2)(b) another neighbor, § 87(2)(b) § 87(2)(b) another neighbor, § 87(2)(b) her daughter's friend, and § 87(2)(b) an employee of § 87(2)(b), a business near the incident location, as witnesses to the incident. On May 23, 2011, § 87(2)(b) was contacted on her

mobile telephone number, at which point she confirmed her contact information and scheduled an interview appointment for June 2, 2011. On June 2, 2011, § 87(2)(b) missed her first scheduled interview appointment and a missed appointment letter was mailed to her residence. Two additional calls placed to § 87(2)(b) on June 6, 2011 and June 7, 2011 failed, and voice mail messages were left on each occasion.

On June 20, 2011, the first please call letter was mailed to § 87(2)(b) at the address provided by § 87(2)(b). After unsuccessfully attempting to contact § 87(2)(b) four times between June 20, 2011 and June 27, 2011, she called back and left two voice mail messages confirming her contact information. On June 27, 2011, a final please call letter was mailed to § 87(2)(b). On July 14, 2011, § 87(2)(b) was contacted at § 87(2)(b)'s telephone number, at which point she scheduled an interview appointment for July 28, 2011. On July 28, 2011, § 87(2)(b) missed her first scheduled interview appointment and a missed appointment letter was mailed to her residence. On July 29, 2011, § 87(2)(b) scheduled another interview appointment for August 10, 2011. On August 10, 2011, § 87(2)(b) missed her second scheduled interview appointment.

On June 24, 2011, the first please call letter was mailed to § 87(2)(b) at the address provided by § 87(2)(b). On July 14, 2011, § 87(2)(b)'s grandmother, confirmed § 87(2)(b)'s contact information. On July 29, 2011, § 87(2)(b) was contacted on his home telephone number, at which point he confirmed his contact information and scheduled an interview appointment for August 3, 2011. On August 3, 2011, § 87(2)(b) missed his first interview appointment and a missed appointment letter was mailed to his residence. On August 5, 2011, § 87(2)(b) scheduled another interview appointment, for August 10, 2011. On August 10, 2011, § 87(2)(b) missed his second scheduled interview appointment.

On June 24, 2011, § 87(2)(b) was contacted on § 87(2)(b)'s telephone number, at which point she confirmed her contact information and scheduled an interview appointment for July 1, 2011. On July 1, 2011, § 87(2)(b) missed her first scheduled interview appointment and, on July 6, 2011, a missed appointment letter was mailed to her residence. On August 2, 2011, § 87(2)(b) scheduled another interview appointment for August 9, 2011. On August 9, 2011, § 87(2)(b) missed her second scheduled interview appointment.

Five calls placed to the telephone number provided by § 87(2)(b) for § 87(2)(b) between July 14, 2011 and August 12, 2011 failed, and voice mail messages were left on each occasion. § 87(2)(b) was unable to provide an address for § 87(2)(b). Searches of the 411 directory, 411 reverse telephone directory, COLE directory, Office of Court Administration database, Department of Motor Vehicles database, Lexis Nexis database, and CCRB database yielded negative results for § 87(2)(b) contact information, nor did a subpoena sent to AT&T, the carrier of § 87(2)(b) mobile telephone number.

On July 14, 2011, § 87(2)(b) contacted the undersigned investigator and confirmed her contact information. Five calls placed to § 87(2)(b) between July 14, 2011 and August 12, 2011 failed, and the investigator was unable to leave messages for § 87(2)(b). Please call letters were mailed to § 87(2)(b) on July 29, 2011 and May 1, 2012. On July 29, 2011, § 87(2)(b) an employee of § 87(2)(b) located at § 87(2)(b) in Brooklyn, took a message for § 87(2)(b) and, while refusing to identify his surname, confirmed that he could be reached at the office. Six calls placed to § 87(2)(b) between July 29, 2011 and August 17, 2011 failed, and messages were left on each occasion. The first please call letter was mailed to § 87(2)(b).

at the § 87(2)(b) office on August 12, 2011 and the final please call letter was sent on August 17, 2011. To date, no letters mailed to § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), or § 87(2)(b) have been returned to the CCRB by the US Postal Service. A search of the Department of Correction inmate database confirmed that none of the above individuals were incarcerated in the City of New York at the time that contact attempts were being made.

NYPD Statement(s):

Subject Officer: PO FADY AZMY

PO Azmy is a § 87(2)(b) Caucasian male officer, § 87(2)(b), with brown hair and brown eyes. On May 10, 2011, PO Azmy worked from 3:00 p.m. to 11:35 p.m. at foot post 13 within the confines of the 77th Precinct, and was assigned to Patrol Borough Brooklyn North. PO Azmy was dressed in uniform, was not assigned to a police vehicle, and was not working with any other officers.

Memo Book:

PO Azmy's memo book noted that, at 6:30 p.m. on May 10, 2011, he stopped one female in front of § 87(2)(b) (identified by the investigation as § 87(2)(b) after observing her throw garbage into the street. The female told PO Azmy, "I don't have an ID, go fuck yourself." When PO Azmy attempted to arrest the female, she started screaming and cursing, causing a crowd to gather. The female's brother, father, and friend were arrested § 87(2)(b). At 6:40 p.m., PO Azmy arrested one individual and he notified Lt. Sharkey of the arrest. At § 87(2)(b) PO Azmy arrived at § 87(2)(b) to obtain medical treatment for a back and face injury, as well as injuries sustained from "mace" (encl. 50a-50c).

Arrest Documentation:

- § 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
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§ 87(2)(b)
§ 87(2)(b)
- § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(a) 160.50

CCRB Testimony:

PO Azmy was interviewed at the CCRB on August 26, 2011 (encl. 51a-51d). On May 10, 2011, at approximately 5:52 p.m., PO Azmy was conducting a routine patrol near his foot post when the impact supervisor, Sgt. Gonzalez, arrived at the location and scratched his memo book. At approximately 6:15 p.m., PO Azmy saw an individual, identified by the investigation as § 87(2)(b) standing with a group of individuals down the block, in front of § 87(2)(b) (identified by the investigation as § 87(2)(b) § 87(2)(b) threw a handful of garbage into the middle of the street, looked over at PO Azmy, and said, “What?” while putting her hands up and shrugging. PO Azmy told § 87(2)(b) that he did not live in the neighborhood and requested that she pick up the garbage to keep her own neighborhood clean. § 87(2)(b) said, “I don’t have ID, give me a littering summons.” PO Azmy told § 87(2)(b) that he had never issued a summons for littering and § 87(2)(b) said, “I’m not going to pick it up.” PO Azmy warned § 87(2)(b) that she would be issued a summons if she did not pick up the garbage and § 87(2)(b) said, “I don’t have ID on me, go fuck yourself, what are you going to do?” PO Azmy informed § 87(2)(b) that, since she did not have ID, he would have to take her to the stationhouse to verify her identity.

§ 87(2)(b) extended her right arm so that she was holding her palm approximately one or two inches from PO Azmy’s face, then began to walk away. PO Azmy grabbed § 87(2)(b)’s right elbow and told her that she would either pick up the garbage, provide identification so that she could receive a summons, or come to the stationhouse. An individual, identified as § 87(2)(b)’s brother, § 87(2)(b) exited § 87(2)(b) approached PO Azmy and said, “That’s my sister, don’t touch her.” PO Azmy grabbed one of § 87(2)(b)’s wrists and affixed one handcuff to the wrist. § 87(2)(b) immediately pushed PO Azmy on his left shoulder with both arms and swung both fists at him, an unknown number of times with each arm. § 87(2)(b) did not strike PO Azmy with any punches, since PO Azmy fell to the ground after § 87(2)(b) pushed him. PO Azmy fell backwards onto a small fence bordering a tree (a “tree box”), injuring his back.

PO Azmy observed Sgt. Gonzalez approach § 87(2)(b) and attempt to place her in handcuffs, while PO Sanchez approached § 87(2)(b). PO Azmy was unable to specify where Sgt. Gonzalez came from. PO Azmy immediately stood up and assisted Sgt. Gonzalez with arresting § 87(2)(b) so he did not see PO Sanchez interacting with § 87(2)(b) although he heard PO Sanchez repeatedly yelling, “Stop resisting.” Later in the interview, PO Azmy stated that another officer may have been interacting with § 87(2)(b).

PO Azmy stated that § 87(2)(b) was struggling with multiple officers while he was arresting § 87(2)(b) although he was unable to specify how § 87(2)(b) was struggling or how the officers were attempting to gain his compliance. At some point, § 87(2)(b) went to the ground, although PO Azmy was unable to specify how he went to the ground or how officers attempted to arrest him after he went to the ground. PO Azmy did not see any officers strike § 87(2)(b) or any other civilians with any body parts or objects at any point during the incident. PO Azmy did not see any officer draw his or her asp at any point during the incident. As soon as PO Azmy stood up, he called for additional units on his radio.

Numerous officers from multiple commands responded to the location, including officers from the 77th Precinct, the 79th Precinct, and the 81st Precinct; PO Azmy also observed helicopters from the Aviation Unit circling the location. A crowd of approximately sixty to seventy people formed and surrounded where the officers were arresting § 87(2)(b) and § 87(2)(b) “in a matter of seconds.” PO Azmy and Sgt. Gonzalez were eventually successful in handcuffing § 87(2)(b) at which point they placed her in a marked van. While leading § 87(2)(b) to the van, § 87(2)(b)s father, § 87(2)(b), § 87(2)(b), and his friend, identified by the investigation as § 87(2)(b), § 87(2)(b) stood in front of PO Azmy and Sgt. Gonzalez and § 87(2)(b) § 87(2)(b) said, “You’re not taking her anywhere.” PO Azmy said, “Get out of the way,” and he and Sgt. Gonzalez pushed in between the two individuals so that they could place § 87(2)(b) in the rear of the van.

After PO Azmy placed § 87(2)(b) in the rear of the police van, he returned to the location and saw that § 87(2)(b), § 87(2)(b), and § 87(2)(b) had been arrested and were standing in handcuffs. PO Azmy did not know which officers arrested the three individuals but noted that the officers who arrested § 87(2)(b), § 87(2)(b), and § 87(2)(b) had observed them attempting to prevent the officers from placing § 87(2)(b) in the police vehicle. PO Azmy saw that § 87(2)(b) had been sprayed with pepper spray, although he did not see who discharged pepper spray. PO Azmy denied that pepper spray was used against any individual other than § 87(2)(b) at any point during the incident, although he noted that several officers were accidentally sprayed with pepper spray. PO Azmy also noted that he felt the effect of pepper spray and later obtained medical treatment in connection with being pepper sprayed.

PO Azmy observed one individual who had been sitting in a wheelchair, identified by the investigation as § 87(2)(b) lying on the ground, yelling and screaming. PO Azmy did not see what had happened to § 87(2)(b) to cause him to leave his wheelchair. PO Azmy saw § 87(2)(b) get up off the ground of his own volition. PO Azmy saw § 87(2)(b) at § 87(2)(b) later on the date of the incident but did not observe any injuries on his person. PO Azmy denied that § 87(2)(b) was pepper sprayed.

Following the incident, PO Azmy traveled to the 77th Precinct stationhouse in a marked patrol car to process the arrest of § 87(2)(b). When he got to the stationhouse, PO Azmy began having an asthma attack as a result of being pepper sprayed. An ambulance was called to the stationhouse and PO Azmy was transported to § 87(2)(b) to obtain medical treatment for his injury to his back and for the discomfort sustained from pepper spray. PO Azmy returned to the 77th Precinct stationhouse to finish processing § 87(2)(b)s arrest after receiving medical attention. At the stationhouse, PO Azmy did not observe any injuries on any of the individuals who had been arrested, nor did he hear them complain of any injuries. PO Azmy did not hear any officers use profanity at any point during the incident.

§ 87(2)(b)

§ 87(2)(b). PO Azmy was unable to identify any of the officers who responded to the call for additional units, nor was he able to recognize any officers from a photograph of the incident.

Subject Officer: PO CHRISTOPHER SANCHEZ

PO Sanchez is a § 87(2)(b) Hispanic male officer, § 87(2)(b), with black hair and brown eyes. On May 10, 2011, PO Sanchez worked from 3:00 p.m. to 11:35 p.m. and was assigned to foot post number fifteen for the Patrol Borough Brooklyn North Impact Response Team, on § 87(2)(b). PO Sanchez was working with an officer at an adjoining foot post, number thirteen, also located on § 87(2)(b), who he identified as PO Azmy. PO Sanchez identified his supervisor as Sgt. Gonzalez. PO Sanchez was working on foot and was dressed in uniform.

Memo Book:

PO Sanchez's memo book noted that, at 5:54 p.m. on May 10, 2011, Sgt. Gonzalez met with him to scratch his memo book. At 6:20 p.m., he assisted foot post thirteen in front of § 87(2)(b) in Brooklyn. At 6:40 p.m., four individuals were arrested by the officer assigned to post thirteen. At 7:16 p.m., PO Sanchez was assigned to safeguard a patrol car at § 87(2)(b) and § 87(2)(b). At 8:25 p.m., police vehicle number 3156 was removed by a department tow truck. At 8:40 p.m., PO Sanchez traveled to the 77th Precinct stationhouse in van number 5972 (encl. 55a-55b).

CCRB Testimony:

PO Sanchez was interviewed at the CCRB on December 14, 2011 (encl. 55a-55e). § 87(2)(g)
§ 87(2)(b) On May 10, 2011, at approximately 5:54 p.m., § 87(2)(b) who was described by PO Sanchez as being approximately six feet, five inches tall, moved in between § 87(2)(b) and PO Azmy to prevent PO Azmy from arresting § 87(2)(b). PO Sanchez did not recall what actions were taken by PO Azmy to arrest § 87(2)(b) prior to § 87(2)(b)'s approach, but stated that PO Azmy intended to arrest § 87(2)(b) as soon as she refused to provide her identification and began acting in a disorderly manner. § 87(2)(b) pushed PO Azmy away from § 87(2)(b) and PO Azmy requested that additional officers respond to the location over the radio. Officers arrived at the location within two minutes. More than twenty-five unidentified, uniformed officers responded to the location in more than ten marked police vehicles, including one police van (PO Sanchez did not notice whether any plainclothes officers responded to the location).

PO Azmy, PO Sanchez, and an unidentified number of additional officers took § 87(2)(b) to the ground in order to arrest him, although PO Sanchez was unable to recall how the officers took him to the ground. Later in the interview, PO Sanchez stated that he and PO Azmy were the only officers who participated in taking § 87(2)(b) to the ground. PO Sanchez stated that § 87(2)(b) resisted being arrested prior to being taken to the ground but was unable to recall any specific actions, other than that he pushed PO Azmy. While the officers were attempting to arrest § 87(2)(b) civilians continued to approach the location and join the

growing crowd. PO Sanchez estimated that, at the height of the incident, the crowd was comprised of more than fifty civilians. He heard unidentified officers telling the crowd to, “Step back.”

PO Sanchez recalled that an officer or officers used pepper spray during the incident but was unable to recall why it was used or against whom it was used. PO Sanchez denied using pepper spray during the incident and was unable to recall whether § 87(2)(b) was pepper sprayed. Later in the interview, PO Sanchez stated that he observed pepper spray on § 87(2)(b)s face, and stated that he likely obtained medical treatment to treat the effects of the pepper spray. He did not recall seeing any officers with their asps drawn during the incident and did not recall seeing any officers strike any civilians with any body parts or objects. PO Sanchez did not see any officers swinging their asps at any civilians and did not hear any officers use profanity toward any civilians.

PO Sanchez did not recall which officers transported the arrested individuals to the 77th Precinct stationhouse. At the stationhouse, PO Sanchez did not see any officer push any civilian against a wall or bring any civilian to the ground. Following the incident and before traveling to the 77th Precinct stationhouse, PO Sanchez responded to the location of a vehicle accident at the corner of § 87(2)(b) and § 87(2)(b). Officers had totaled a patrol car while attempting to respond to PO Azmy request for additional units.

Subject Officer: PO MATTHEW PALMIERI

PO Palmieri is a § 87(2)(b) Caucasian male officer, § 87(2)(b), with brown hair and green eyes. On May 10, 2011, PO Palmieri worked from 3:00 p.m. to 11:35 p.m. and was assigned to foot post two for the Patrol Borough Brooklyn North Impact Response Team. PO Palmieri was dressed in uniform, was not assigned to a motor vehicle, and was not working with any other officers.

Memo Book:

PO Palmieri’s memo book noted that, at 5:55 p.m., he was at § 87(2)(b) and § 87(2)(b) in Brooklyn in response to a pedestrian that had been struck by a vehicle. At 6:25 p.m., PO Palmieri responded to a call for additional officers at § 87(2)(b) where he noted that pepper spray was used on a crowd. At § 87(2)(b) PO Palmieri traveled to the hospital to obtain treatment for pepper spray in his eyes. At 9:00 p.m., PO Palmieri arrived at the 77th Precinct stationhouse (encl. 54a-54b).

CCRB Testimony:

PO Palmieri was interviewed at the CCRB on September 21, 2011 (encl. 54a-54e). § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b) On May 10, 2011, at approximately 6:25 p.m., PO Palmieri was near the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, assisting a civilian who had been struck by a vehicle. He heard an officer call for additional units at § 87(2)(b) approximately § 87(2)(b) away from the intersection of § 87(2)(b) and § 87(2)(b) and responded to the location on foot.

PO Palmieri immediately approached several unidentified officers who were attempting to place an African-American male individual, who was in handcuffs, into a marked police van. PO Palmieri approached the officers when they were leading the individual from the sidewalk to the van, and did not observe the individual prior to seeing officers leading him to the van, on foot.

When presented with photographs of individuals arrested at the time and place of the incident, PO Palmieri identified § 87(2)(b) as the individual who he attempted to place in the police vehicle. § 87(2)(b) was resisting the officers attempts to place him in the vehicle by making his body limp, creating a dead weight.

As PO Palmieri and the other officers were attempting to place § 87(2)(b) in the police van, numerous civilians, males and females, surrounded the officers and approached to within two feet of the officers. Numerous civilians were grabbing the arms and shirts of the officers, including PO Palmieri, and were “tugging” on them, as if they were attempting to pull them away from § 87(2)(b). PO Palmieri estimated that more than five civilians approached to within two feet of the officers. PO Palmieri also observed numerous additional civilians joining the crowd that was gathering around the officers who were attempting to place § 87(2)(b) in the vehicle. PO Palmieri also noted that the individuals in the crowd were yelling obscenities at the officers, although he was unable to recall any specific phrases that were uttered.

PO Palmieri said, “Get back,” to the crowd approximately three or four times, without eliciting any response from any civilians, before drawing his pepper spray and deploying it into the crowd. PO Palmieri specified that he decided to use pepper spray to control the crowd, since he did not want to use his asp against any individuals (he estimated that the use of pepper spray was a more minimal use of force than the use of an asp). PO Palmieri did not specifically warn any civilian in particular that he would use pepper spray if he or she did not comply with his instructions and denied that NYPD procedure for the use of pepper spray against a crowd was different than the policy for its use against individuals. PO Palmieri did not see whether § 87(2)(b) had been placed in the police vehicle at the point that he deployed his pepper spray, since he had turned his attention to the crowd once civilians began pulling on his body and clothing.

PO Palmieri observed the pepper spray strike several of the civilians in his vicinity in the face, causing them to back away from the officers. He was unable to specify how many individuals were struck with pepper spray but noted that one unidentified individual was struck with the majority of the pepper spray. At approximately the same time that PO Palmieri deployed his pepper spray, he was struck in the face with another officer’s pepper spray. He was unable to identify the officer, specify from where the pepper spray was deployed, or identify the intended target of the pepper spray. PO Palmieri did not see if any civilians were struck with the pepper spray that struck him in the face. As PO Palmieri’s eyes began to water from the pepper spray, an unidentified officer grabbed him and pulled him out of the crowd. Following the incident, PO Palmieri was transported to an unspecified hospital in an ambulance to obtain medical treatment from injuries sustained from contact with pepper spray.

Witness Officer: SGT. GEORGINA GONZALEZ

Sgt. Gonzalez is a § 87(2)(b) Hispanic female officer, § 87(2)(b), with black hair and black eyes. On May 10, 2011, Sgt. Gonzalez worked from 3:00 p.m. to 4:27 a.m. on the following day as the impact supervisor for the Patrol Borough Brooklyn North impact response team. Sgt. Gonzalez was dressed in uniform, was working with PO Cuevas, and was assigned to marked patrol car 4495.

Memo Book:

Sgt. Gonzalez’s memo book noted that, between 5:22 p.m. and 6:15 p.m. on May 10, 2011, she visited officers assigned to foot posts 12, 8, 1, 3, 4, 5, 2, 6, 13, 10, 9, 11, and 15, in that order. At 6:25 p.m., Sgt. Gonzalez responded to a call for additional units broadcast by the officers

assigned to foot posts 6 and 15, PO Sanchez and PO Azmy, at § 87(2)(b) in Brooklyn (identified by the investigation as § 87(2)(b)). When PO Azmy attempted to issue a criminal summons § 87(2)(b) to an African-American female, an African-American male pushed him. Four individuals were arrested and several officers were injured from pepper spray inhalation (encl. 53a-53d).

CCRB Testimony:

Sgt. Gonzalez was interviewed at the CCRB on September 21, 2011 (encl. 53a-53h). § 87(2)(g)

§ 87(2)(g) On May 10, 2011, at approximately 6:25 p.m., Sgt. Gonzalez was signing the memo books of several officers assigned to a marked van assigned to the 77th Precinct impact response team, who she identified as PO Laporta, PO Brown, and PO Green, at the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, when she observed PO Azmy and PO Sanchez interacting with a female, identified by the investigation as § 87(2)(b). Sgt. Gonzalez was sitting in her vehicle with PO Cuevas while she observed the officers interacting with § 87(2)(b) and was unable to hear the conversation between the officers and § 87(2)(b).

After § 87(2)(b) pushed PO Azmy, PO Azmy immediately broadcast a call for additional units over the radio and Sgt. Gonzalez exited her vehicle. Sgt. Gonzalez specified that she did not hear the call for additional units, but that she observed PO Azmy making a call on the radio mounted to his shoulder and saw additional units responding to the location. Sgt. Gonzalez and PO Cuevas approached § 87(2)(b) and assisted PO Azmy in attempting to place her in handcuffs, while numerous additional unidentified officers responded to the location to assist PO Sanchez, who was attempting to arrest § 87(2)(b). Sgt. Gonzalez, PO Azmy, and PO Cuevas were able to pull § 87(2)(b)'s arms behind her back and place her in handcuffs after approximately three or four minutes, since she was flailing her arms around the sides of her body, in an effort to prevent the officers from arresting her. § 87(2)(b) was also yelling throughout the incident and did not respond to numerous instructions from Sgt. Gonzalez to, "Put [her] arms behind [her] back." When § 87(2)(b) was placed in handcuffs, Sgt. Gonzalez turned to assist officers in handcuffing § 87(2)(b).

Sgt. Gonzalez stated that, while she, PO Azmy, and PO Cuevas were attempting to overcome § 87(2)(b)'s resistance to having her arms pulled behind her back, an unidentified female civilian was attempting to pull § 87(2)(b) away from the officers. Sgt. Gonzalez did not know whether the female civilian who was attempting to prevent § 87(2)(b) from being arrested was herself arrested. When unidentified officers led § 87(2)(b) to a police van, Sgt. Gonzalez remained at the incident location so that she could assist in the arrest of § 87(2)(b).

When Sgt. Gonzalez approached § 87(2)(b) he was lying on the ground and was surrounded by five or six officers, who were attempting to pull his arms behind his back. Sgt. Gonzalez stated that § 87(2)(b) was fighting with the officers and was refusing to allow them to pull his arms behind his back. While the officers were attempting to arrest § 87(2)(b), a crowd of approximately fifty civilians gathered around the officers, with some of the individuals attempting to push and pull the officers away from § 87(2)(b). Sgt. Gonzalez smelled pepper spray that an officer had deployed but did not know who had deployed it. Two of the arrested individuals were placed in one marked van and two in another, although Sgt. Gonzalez was unable to recall which individuals were placed in which van, and were transported to the 77th Precinct stationhouse.

Sgt. Gonzalez first observed officers attempting to arrest § 87(2)(b) while he was lying inside a low fence surrounding a tree (a “tree box”) on the sidewalk of § 87(2)(b) (Sgt. Gonzalez did not recall how § 87(2)(b) was lying). § 87(2)(b) was moving his arms around on the ground so that officers were unable to handcuff him, and was attempting to kick officers by flailing his legs at them (Sgt. Gonzalez did not recall whether he was successful in kicking any of the officers). Officers repeatedly instructed § 87(2)(b) to, “Stop resisting,” and an officer sprayed him with pepper spray. Sgt. Gonzalez stated that she smelled the pepper spray but did not see who discharged it, and specified that she smelled the pepper spray “a couple seconds” after turning her attention to § 87(2)(b). Sgt. Gonzalez did not see any officers holding pepper spray canisters during the incident. Sgt. Gonzalez observed liquid on § 87(2)(b)'s face and saw his eyes watering after she smelled pepper spray, so she assumed that he had been sprayed with the pepper spray. Sgt. Gonzalez denied seeing any officers strike § 87(2)(b) or any other civilians with any body parts or objects.

After § 87(2)(b) had been pepper sprayed, officers were able to pull his arms behind his back and place him in handcuffs. Sgt. Gonzalez estimated that the officers were able to place § 87(2)(b) in handcuffs approximately two or three minutes after she successfully handcuffed § 87(2)(b) so that it took officers approximately six minutes to arrest § 87(2)(b) from the point that he pushed PO Azmy. Officers lifted § 87(2)(b) to his feet and led him to the rear of a police van.

Sgt. Gonzalez was unable to recall whether any of the vans utilized to transport the prisoners to the stationhouse was the van assigned to PO Laporta, PO Brown, and PO Green. Upon further questioning, Sgt. Gonzalez recalled that § 87(2)(b) and § 87(2)(b) were transported to the stationhouse in the same van. Sgt. Gonzalez recalled that two other individuals were arrested during the incident but did not know why they had been arrested and did not observe the arrests.

Sgt. Gonzalez remained at the location for approximately ten minutes after the prisoners were transported away from the location. Sgt. Gonzalez observed PO Barrington Clemmings of the 77th Precinct complaining of being pepper sprayed at the location, so an unidentified officer called an ambulance to the location and EMT's washed PO Clemmings' eyes. PO Clemmings was the only individual who received medical treatment at the location. Sgt. Gonzalez denied that any civilians requested medical attention from any officers in her presence while at the incident location. Sgt. Gonzalez instructed EMS to travel to the 77th Precinct stationhouse to administer medical treatment and the ambulance left the location immediately after PO Clemmings was treated. Nine other unidentified officers were injured from pepper spray and received medical treatment at the 77th Precinct stationhouse.

When Sgt. Gonzalez traveled to the 77th Precinct stationhouse, she saw that EMS was inside the stationhouse, treating nine officers and § 87(2)(b) who were all suffering from pepper spray inhalation. Sgt. Gonzalez did not recall that § 87(2)(b) was pushed against a wall or onto the ground while inside the stationhouse. None of the prisoners had any other visible injuries and Sgt. Gonzalez did not hear them complain of any other injuries. PO Azmy and PO Cuevas received medical treatment for unspecified injuries unrelated to pepper spray at an unidentified hospital. Sgt. Gonzalez denied hearing any officer refuse any civilian's request to use the restroom or use profanity toward any civilians while inside the stationhouse. Sgt. Gonzalez denied seeing § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) or § 87(2)(b) at the location when presented with their photographs.

Witness Officer: LT. JOHN SHARKEY

Lt. Sharkey is a § 87(2)(b) Caucasian male officer, § 87(2)(b), with red hair and blue eyes. On May 10, 2011, Lt. Sharkey worked from 2:45 p.m. to 11:35 p.m., as the impact lieutenant for the Patrol Borough Brooklyn North impact response team, and was assigned to perform administrative duties inside the 77th Precinct stationhouse. Lt. Sharkey was dressed in uniform and was not assigned to a motor vehicle. Lt. Sharkey's memo book did not contain any entries relevant to the incident.

CCRB Testimony:

Lt. Sharkey was interviewed at the CCRB on September 4, 2011 (encl. 52a-52e). § 87(2)(g)

§ 87(2)(b). On May 10, 2011, at an unknown time, Lt. Sharkey was performing administrative duties inside the 77th Precinct stationhouse when he heard an officer from the 77th Precinct impact response team, possibly PO Azmy, broadcast a call for additional officers, at § 87(2)(b) and § 87(2)(b) in Brooklyn, over the radio. Lt. Sharkey immediately exited the stationhouse and got into a marked patrol car containing two officers. When Lt. Sharkey arrived at the location, two males and a female had been arrested and placed in the rear of police vehicles. He observed over fifty officers from various commands at the location, as well as "hundreds" of civilians gathered in the street and sidewalks. Lt. Sharkey observed numerous marked patrol cars and a marked police van at the location, and did not observe any unmarked police vehicles at the location. Lt. Sharkey identified units from the aviation unit flying overhead. Lt. Sharkey stated that his objective was to get the officers from his impact response team into vehicles, so that they could be transported away from the location. The crowd presented a dangerous situation for the officers, and individuals were throwing debris off the rooftops of nearby buildings. Lt. Sharkey recalled that unidentified officers traveled to the roofs of one or more buildings to prevent the individuals from throwing objects from the roofs.

Lt. Sharkey observed PO Azmy and Sgt. Gonzalez at the incident location, as well as officers from all of the foot posts located on § 87(2)(b), between § 87(2)(b) and § 87(2)(b) although he was unable to identify those officers. Lt. Sharkey identified the foot posts on § 87(2)(b) as foot posts nine through sixteen. When presented with a photograph of the incident, Lt. Sharkey identified PO Jason Marsman of the 77th Precinct as the officer present in the far right of the photograph and PO Kevin Agro of Patrol Borough Brooklyn North as the officer near the center of the photograph.

Lt. Sharkey recalled that three or four officers were involved in a vehicle accident on § 87(2)(b) or § 87(2)(b) in Brooklyn while attempting to respond to the 10-13, and that all of the officers involved went to the hospital. When presented with the UF-49 documenting officers who were injured during the incident, Lt. Sharkey recalled that PO Azmy received medical treatment at the hospital for pepper spray related injuries or complications. Lt. Sharkey recalled that PO Jesse Colon or PO Victor Cuevas, both of Patrol Borough Brooklyn North, may have been punched in the face by an unidentified individual. Lt. Sharkey did not see any officer push any civilians against the wall while inside the stationhouse, and did not see any civilian on the ground inside the stationhouse. Lt. Sharkey did not recall that any officer used profanity toward any civilians while at the incident location or while inside the stationhouse.

Witness Officer: PO DAT TANG

PO Tang is a § 87(2)(b) Asian male officer, § 87(2)(b), with black hair and brown eyes. On May 10, 2011, PO Tang worked from 3:00 p.m. to 11:35 p.m. as a field training officer for the 77th Precinct impact response team. PO Tang was dressed in uniform and was assigned to a marked van with PO Green and PO Brown, of which he was not the driver.

Memo Book:

PO Tang's memo book noted that, at 6:05 p.m. on May 10, 2011, he traveled to meet his sergeant at § 87(2)(b) in Brooklyn and, at 6:15 p.m., Sgt. Gonzalez signed his memo book. At 6:30 p.m., PO Tang responded to a call for additional units at § 87(2)(b). At 6:48 p.m., PO Tang arrived at the 77th Precinct stationhouse with two males and, at 8:15 p.m., he resumed patrol (encl. 57a-57c.).

CCRB Testimony:

PO Tang was interviewed at the CCRB on March 7, 2012 (encl. 57a-57e). § 87(2)(g)

On May 10, 2011, at approximately 6:48 p.m., PO Tang responded to the vicinity of § 87(2)(b) in Brooklyn after receiving a call over the radio from an officer requesting additional units at the location. Two male prisoners were placed in PO Tang's marked van by unidentified officers and PO Tang did not observe any other individuals in handcuffs at the location. PO Tang specified that an unidentified supervising officer instructed him to transport the individuals to the stationhouse. PO Tang assisted the officers in placing the prisoners in the marked van while PO Green and PO Brown monitored the crowd to ensure that no civilians approached the prisoners (although PO Tang denied making physical contact with the prisoners). PO Tang denied that any civilians attempted to approach the marked van while the prisoners were being placed inside. At the incident location, PO Tang did not observe officers strike any individuals with any body parts or objects, spray any individuals with pepper spray, or curse at any individuals, nor did he hear any officers threaten any individuals with physical force of any type. PO Tang was at the location for approximately ten to fifteen minutes. PO Tang accompanied the two arrested individuals to the 77th Precinct stationhouse in the marked van, which also contained PO Green and PO Brown. When presented with photographs of the individuals arrested in connection with the incident, PO Tang confirmed that § 87(2)(b) and § 87(2)(b) were the two individuals who he transported to the 77th Precinct stationhouse.

Witness Officer: PO CHALEKA BROWN

PO Brown is a § 87(2)(b) African-American female officer, § 87(2)(b), with brown hair and brown eyes. On May 10, 2011, PO Brown worked from 3:00 p.m. to 11:35 p.m. and was assigned to the Patrol Borough Brooklyn North impact auto, within the confines of the 77th Precinct. PO Brown was dressed in uniform and was assigned to a marked van with up to eight other uniformed officers, who PO Brown was unable to identify. PO Brown stated that she was most likely working with approximately three additional officers for the majority of her tour.

Memo Book:

PO Brown's memo book noted that, at 6:23 p.m., the impact supervisor, Sgt. Gonzalez, visited and signed her memo book. At 7:00 p.m., PO Brown responded to a call for additional units (specifically to assist a police officer) at § 87(2)(b) and § 87(2)(b) in Brooklyn. At 9:00 p.m., PO Brown traveled to § 87(2)(b) (encl. 56a-56b).

CCRB Testimony:

PO Brown was interviewed at the CCRB on January 18, 2012 (encl. 56a-56d). § 87(2)(g)

On May 10, 2011, at approximately 7:00 p.m., PO Brown was at the incident location for approximately ten to fifteen minutes, during which time she instructed individuals in the crowd to disperse. Following the incident, PO Brown traveled to § 87(2)(b) to obtain medical treatment to relieve the effects of pepper spray.

Witness Officer: PO RICHARD KOWALCZYK

PO Richard Kowalczyk of Patrol Borough Brooklyn North prepared several AIDED reports in connection with the incident, which noted the following:

- PO Palmieri and PO Jesse Colon of Patrol Borough Brooklyn North, as well as PO Barrington Clemmings of the 77th Precinct, were sprayed with pepper spray “while taking police action in regards to an arrest.”
- PO Brown suffered chest pain and shortness of breath as a result of inhaling pepper spray during the incident.
- PO Salvatore Carulla of Patrol Borough Brooklyn North suffered chest pain after inhaling pepper spray during the incident, and also injured his left leg.
- PO Victor Cuevas of Patrol Borough Brooklyn North sustained a sprain to his left hand “while assisting in a lawful arrest.”
- PO Azmy suffered chest pain after inhaling pepper spray during the incident, and also injured his back and face (encl. 59a-59An).

Witness Officer: SGT. ERIC RODRIGUEZ

Sgt. Eric Rodriguez of the 77th Precinct prepared an unusual occurrence report (UF-49) in connection with the incident, § 87(2)(g)

On the date of the incident, numerous officers sustained injuries, including those documented in the AIDED reports prepared by PO Kowalczyk (see above), as well as PO Roman Goris and PO Peter Behan of the 77th Precinct. The UF-49 also noted that all of the officers listed above, as well as Sgt. Daniel Lee and Sgt. Alton Walker, both assigned to the 77th Precinct at the time of the incident, were present at the incident location.

§ 87(2)(a) PBH §18(6)

Category	U.S. should take action	U.S. should not take action	U.S. should take action, but only if other countries do first
All respondents	85%	10%	5%
U.S. respondents	88%	8%	4%
Non-U.S. respondents	82%	12%	6%

§ 87(2)(a) PBH §18(6)

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NYPD Document(s)

- SPRINT job § 87(2)(b) noted that, at 6:29 p.m. on the date of the incident, foot post 11 from the 77th Precinct broadcast a call for additional units at § 87(2)(b) and § 87(2)(b) in Brooklyn, to which four 77th Precinct patrol supervisors, a 77th Precinct lieutenant, sector G from the 77th Precinct, an ESU unit, and an aviation unit responded. At 6:34 p.m., a large crowd was reported in front of § 87(2)(b). At 7:07 p.m., a patrol supervisor reported that four individuals were arrested at the location (encl. 68a-68k).
- SPRINT job § 87(2)(b) noted that several calls reporting a motor vehicle accident involving an NYPD patrol car containing two uniformed male officers were placed to 911 between 6:31 p.m. and 6:36 p.m. on the date of the incident. Callers reported that a patrol car ran into a light pole at the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. At 6:38 p.m., a lieutenant from the 77th Precinct reported that the officers involved in the accident received minor injuries. At § 87(2)(b), Lt. Sharkey reported that two officers were sprayed with pepper spray and were transported to § 87(2)(b) for medical treatment (encl. 68a-68k).
- SPRINT job § 87(2)(b) noted that, at 6:54 p.m. on the date of the incident, EMS was called to the incident location to administer medical treatment to two injured prisoners, who had been sprayed with pepper spray. The individuals were transported to § 87(2)(b) in Brooklyn (encl. 68a-68k).
- SPRINT job § 87(2)(b) noted that, at § 87(2)(b) EMS responded to § 87(2)(b) and § 87(2)(b) in Brooklyn to treat a § 87(2)(b) male who had been pepper sprayed. The individual was transported to § 87(2)(b) (encl. 68a-68k).
- The 77th Precinct command log confirmed that PO Azmy arrested § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) at 6:40 p.m. on the date of the incident. The physical/mental conditions of each of the individuals were documented as “apparently normal” (encl. 70a-70b).

Arrest for Incident and Disposition

- § 87(2)(a) 160.50

Status of Civil Proceedings

- § 87(2)(b), § 87(2)(b), and § 87(2)(b) have not filed Notices of Claim with the City of New York as of July 17, 2012 with regard to the incident (encl. 76At).
- § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) filed Notices of Claim with the City of New York on § 87(2)(b) claiming deprivation of federal civil rights, false arrest, excessive force, denial of due process, assault, battery, false imprisonment, intentional infliction of emotional distress, and negligent hiring, training, supervising, and retention practices, and seeking ten million dollars each as redress (encl. 48a-48y).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
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 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- [REDACTED]
 [REDACTED]
 [REDACTED]
- [REDACTED]
 - [REDACTED]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b), § 87(2)(b), § 87(2)(b),
§ 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b),
§ 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) (encl. 5a-16a).

Subject Officer(s) CCRB History

- PO Azmy has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 2a).
- PO Sanchez has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 3a).
- PO Palmieri has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. 4a).

Conclusion

Identification of Subject Officer(s)

- PO Azmy confirmed that he was the first officer to interact with § 87(2)(b) on the date of the incident, that he was the officer who instructed her to pick up the garbage she had thrown on the ground, and that he was the officer who first interacted with § 87(2)(b) § 87(2)(g)
- PO Sanchez confirmed that he was the first officer who responded to the incident location to assist PO Azmy and that he was one of the officers who took § 87(2)(b) to the ground. § 87(2)(g)
- PO Palmieri acknowledged that he discharged pepper spray during the incident.
- § 87(2)(g)

Allegations Not Pled

- Numerous civilians alleged that PO Azmy grabbed or frisked § 87(2)(b) upon approaching her. § 87(2)(b) however, did not allege that any officer made physical contact with her prior to her refusal to provide identification. § 87(2)(b) also admitted to littering. § 87(2)(g)
- Although § 87(2)(b) alleged that an officer slammed § 87(2)(b) against a wall upon stopping her, § 87(2)(b) did not recall that an officer slammed her against a wall; § 87(2)(b)
- Although § 87(2)(b) alleged that an officer choked § 87(2)(b) while taking him to the ground, § 87(2)(b) did not allege that any officer choked him; § 87(2)(g)
- Although § 87(2)(b) and § 87(2)(b) alleged that § 87(2)(b) was punched in the face and struck in the head with an asp while being arrested, § 87(2)(b) did not recall

those particular instances of force; § 87(2)(g)

- Although § 87(2)(b) alleged that an officer struck § 87(2)(b) § 87(2)(b) in the head with an asp, § 87(2)(b) § 87(2)(b) did not repeat the allegation; § 87(2)(g)
- Although § 87(2)(b) alleged that an officer elbowed § 87(2)(b) she acknowledged that she did not witness the incident; § 87(2)(b) § 87(2)(b) § 87(2)(b) was not cooperative with the investigation's efforts to question § 87(2)(b) in regards to the allegation, § 87(2)(g)
- Although § 87(2)(b) and § 87(2)(b) alleged that officers pushed them during the incident, § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Discourtesy – In front of § 87(2)(b) in Brooklyn, PO Fady Azmy spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)

Allegation B: Discourtesy – In front of § 87(2)(b) in Brooklyn, PO Christopher Sanchez spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegations A and B be unsubstantiated.**

Allegation C: Abuse of Authority – In front of § 87(2)(b) in Brooklyn, officers threatened § 87(2)(b), § 87(2)(b), and individuals with the use of force.

Allegation D: Force – In front of § 87(2)(b) in Brooklyn, officers used pepper spray against § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and individuals.

Allegation E: Force – In front of § 87(2)(b) in Brooklyn, officers struck § 87(2)(b) with asps.

Allegation F: Force – In front of § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)

Allegation G: Force – In front of § 87(2)(b) in Brooklyn, PO Fady Azmy used physical force against § 87(2)(b)

Allegation H: Force – In front of § 87(2)(b) in Brooklyn, PO Christopher Sanchez used physical force against § 87(2)(b)

Allegation I: Force – In front of § 87(2)(b) in Brooklyn, PO Matthew Palmieri used pepper spray against individuals.

Numerous civilians interviewed in connection with the investigation, including § 87(2)(b) and § 87(2)(b) alleged that officers swung their asps at them while at the incident

location, although none of the officers interviewed recalled the action. § 87(2)(g)

Numerous civilians alleged that officers deployed pepper spray against numerous civilians during the incident. PO Palmieri recalled that he and other officers deployed pepper spray during the incident and also recalled that he instructed civilians to move away from a police incident prior to deploying pepper spray, and that individuals ignored his instructions. Although no civilians interviewed specifically confirmed PO Palmieri's allegation that individuals attempted to pull officers away from prisoners as they were attempting to place them inside a police vehicle, numerous civilians interviewed acknowledged that they attempted to approach prisoners after they had been handcuffed and that they refused officers' instructions to move away from the incident. All of the individuals who were allegedly pepper-sprayed were standing in the vicinity of a police incident, as part of a large crowd of civilians. NYPD Patrol Guide procedure 212-95, concerning the use of pepper spray devices, authorizes officers to use pepper spray "for self-defense or defense of another from unlawful force" (encl. 1c-1f). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) alleged that officers punched him, pepper-sprayed him, and struck him with asps. Numerous other civilians interviewed recalled that officers also kicked § 87(2)(b) § 87(2)(g)

§ 87(2)(b) alleged that all of the force used against him occurred between the time that he obstructed the arrest of § 87(2)(b) and the time that he was pulled to his feet and placed in handcuffs. § 87(2)(g)

Numerous other civilians interviewed acknowledged that § 87(2)(b) physically prevented officers from gaining access to § 87(2)(b) so that she could be arrested. PO Azmy's medical records confirmed that he sustained an injury during the incident, which he claims to have sustained as a result of being pushed by § 87(2)(b). § 87(2)(b) also acknowledged that he refused to provide his hands to officers so that he could be placed in handcuffs while on the ground.

§ 87(2)(b) admitted that he did not respond to verbal commands from officers, instructing him to back away from his sister, and acknowledged that he continued to resist officers' attempts to handcuff him after he was pepper-sprayed. NYPD Patrol Guide procedure 203-11, concerning the use of force, authorizes officers to use "only that amount of force necessary to overcome resistance" (encl. 1a-1b). § 87(2)(g)

§ 87(2)(g)

it is recommended that Allegations C, D, E, F, G, H, and I be exonerated.

Allegation J: Force – In front of § 87(2)(b) in Brooklyn, officers struck individuals with asps.

§ 87(2)(g)

it is recommended that Allegation J be closed as victims unidentified.

Allegation K: Discourtesy – In front of § 87(2)(b) in Brooklyn, en route to the 77th Precinct stationhouse, and inside the 77th Precinct stationhouse, officers spoke obscenely and/or rudely to § 87(2)(b), § 87(2)(b), and individuals.

Allegation L: Force – Inside the 77th Precinct stationhouse, an officer hit § 87(2)(b) against a wall.

§ 87(2)(g)

Although § 87(2)(b) recalled § 87(2)(b)'s allegation that an officer pushed him against a wall inside the 77th Precinct stationhouse, causing him to fall to the ground, § 87(2)(b) was unable to identify or describe the subject officer, since he had been blinded by pepper spray.

§ 87(2)(g)

§ 87(2)(g)

Team: 1

Investigator: _____ Jonathan Hutchinson _____
Signature Print Date

Supervisor: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date